

8	Hart vs. Providence Mission Hospital - Laguna Beach 2024-01451053	Motion for Summary Judgment and/or Adjudication Continued to 08/17/2026
9	Hernandez vs. Winn Incorporated 2025-01456223	Motion to Compel Arbitration Off Calendar. Stipulation for Arbitration filed. ADR Review Hearing set 12/07/2026.
10	Lomeli de Facio vs. Sodexo, Inc. 2020-01162342	Motion to Compel Physical/Mental Examination Defendant Peter Rendon’s motion to compel an independent mental examination of Plaintiff Felixitas Lomeli De Facio is denied. The motion is not timely. Code Civ. Proc., § 2024.030 provides that the discovery cut-off for expert witnesses is 15 days before trial and the motion cutoff is 10 days before trial. A “continuance or postponement of the trial date does not operate to reopen discovery proceedings.” (Code Civ. Proc., § 2024.020(b).) When trial was continued from 5/4/26 to 8/31/26, the Court did not also continue the discovery deadlines to track with the new trial date. (ROA 842.) The parties both acknowledge in the briefing that this motion is being brought past the deadline. Defendant requests relief from the foregoing statutes pursuant to Code Civ. Proc., § 2024.050. The purposes of California's discovery statutes are, among other things “to assist the parties and the trier of fact in ascertaining the truth; to encourage settlement by educating the parties as to the strengths of their claims and defenses; to expedite and facilitate preparation and trial; to prevent delay; and to safeguard against surprise.” (<i>Beverly Hospital v. Superior Court</i> (1993) 19 Cal.App.4th 1289, 1294–95.) Courts are to “construe the statutes time limitations in a way which is consistent with” these purposes. (<i>Id.</i> at 1295.) There is a time limit imposed on discovery “to expedite and facilitate trial preparation and to prevent delay.” (<i>Id.</i>) Absent a cutoff date (such as 30 days before trial), “the parties could tie up each other and